

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
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Oral-Argument Calendar Notice

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Issued April 24, 2026

This appeal is placed on the May 6, 2026 oral-argument calendar before Composite Jurist March, presiding, Composite Jurist Rowan, and Composite Jurist Slate. The session will begin at 10:00 a.m. in the fictional appellate courtroom identified through counsel’s secure calendar notice. Counsel must report thirty minutes before the session for attendance, equipment, pronunciation, and time-allocation checks. The listed panel and location are part of this synthetic exercise only.

The court allocates twenty minutes total: ten minutes to Blue Ember and ten minutes to Granite Heron. Blue Ember may reserve up to two minutes from its allotment for rebuttal and must state the reservation before beginning. The presiding jurist may adjust the sequence or allow a response to a question after the displayed time expires. Counsel should not assume additional time merely because four connected issues appear in the briefs.

Maya Holt is expected to argue for Blue Ember. Eli Mercer is expected to argue for Granite Heron. Any substitution must be reported promptly and must not delay the calendar. Jonas Bell and Tara Webb remain counsel of record and will receive electronic notice.

Preparation and issues for argument

Counsel should be prepared to address the exact language and requested relief in Granite Heron’s October 10 and October 14 Rule 50(a) motions. Argument should apply *Plyler v. Cox*, 145 F.4th 501, 510–11 (4th Cir. 2025), which makes a distinct basis first raised under Rule 50(b) unavailable while retaining review of the general sufficiency issue raised under Rule 50(a). Counsel also should explain why *Wiener v. AXA Equitable Life Insurance Co.*, 153 F.4th 413, 422 (4th Cir. 2025), concerns variation between a preserved Rule 50(b) issue and appellate theory, not permission to add a new postverdict basis.

The parties should also address the district court’s independent Rule 59 analysis, the abuse-of-discretion standard, and the division between settled liability and causation and retriable gross damages and mitigation. Counsel must explain the operation of Rule 50(c)(2) if JMOL is reversed, including why neither the \$3,900,000 original judgment nor the \$2,700,000 amended judgment would then be immediately payable as the final recovery.

No supplemental authority letter is invited unless a new, controlling authority or a material citation correction warrants one under the governing rule. Counsel may bring clean copies of the briefs and selected record, but may not offer new evidence or substitute wording for a filed motion. Electronic devices must comply with courtroom directions.

Issued by the Fictional Fourth Circuit exercise clerk on April 24, 2026. Electronic notice is sent to Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb. This notice sets argument; it expresses no view about jurisdiction, preservation, merits, or disposition.